



E-Wallets and the Price of Convenience: Legal and Regulatory Dimensions of Financial Privacy in the Philippine Cashless Economy

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1. Introduction

In recent years, the Philippines has experienced a rapid shift toward digital financial services. E-wallet platforms have transitioned from niche payment options to mainstream instruments of daily commerce, contributing to a notable increase in both the share and value of retail payments conducted through digital channels. According to the Bangko Sentral ng Pilipinas (BSP), the share of digital payment transactions in total monthly retail payments rose from 42.1% in 2022 to 52.8% in 2023, surpassing the BSP's 50% target under its Digital Payments Transformation Roadmap, with roughly PHP 6.1 trillion in digital payments recorded for 2023.¹ This trend is further reflected in consumer behavior, with 87% of Filipinos using e-wallets, particularly for QR payments and mobile payment apps, ranking the country second in Southeast Asia, just behind Indonesia.²

Yet the Philippines' progress toward a cashless economy has also brought rising concerns over data breaches, unauthorized access, and fraud that threaten both consumer confidence and market trust, as reflected in the Bangko Sentral ng Pilipinas' report of around 70,000 consumer complaints in 2024,³ including ₱3.37 billion worth of unauthorized transactions,⁴ and TransUnion's finding that the country's suspected digital fraud rate (13.4%) is 148% higher than the global average.⁵ The National Privacy Commission (NPC) has repeatedly investigated incidents of unauthorized transactions and issued advisories emphasizing accountability, breach notification, and limits on intrusive processing.⁶ At the same time, the rapid growth of e-wallet platforms has exposed regulatory gaps and enforcement challenges. While these private

¹ Bangko Sentral ng Pilipinas, 2023 Report on E-Payments Measurement, at 4-5 (2023), https://www.bsp.gov.ph/PaymentAndSettlement/2023_Report_on_E-payments_Measurement.pdf

² E-Wallets Rise as Leading Payment Method in Southeast Asia, Fintech News Singapore (Oct. 22, 2024), <https://fintechnews.sg/102286/mobilepayments/e-wallet-southeast-asia/>.

³ Bangko Sentral ng Pilipinas (BSP). (2025, June 13). *More financial complaints lodged to BSP*. Philippine Star.

⁴ BusinessMirror. (2025, June 17). *BSP cases cover ₱3.37-B transactions*.

⁵ TransUnion. (2025, May 16). *Philippines' suspected digital fraud rate higher than global level for fifth consecutive year*. TransUnion Newsroom.

⁶ National Privacy Commission, NPC Circular No. 16-03: Personal Data Breach Management (Dec. 15, 2016), <https://privacy.gov.ph/wp-content/uploads/2022/01/sgd-npc-circular-16-03-personal-data-breach-management.pdf>



actors process large volumes of sensitive financial and personal data, oversight remains fragmented across banking supervision, consumer protection, and data-protection regimes.⁷

This digitalization of payments carries significant constitutional implications. The 1987 Philippine Constitution guarantees that “the privacy of communication and correspondence shall be inviolable” under Article III, Section 3(1), except under limited, law-prescribed circumstances.⁸ These protections are not merely aspirational as they establish the legal basis where statutes and regulatory measures must be assessed.

This paper focuses on the intersection of constitutional guarantees, statutory safeguards, and financial-sector regulations to evaluate the sufficiency of current frameworks in protecting the financial privacy of e-wallet users. It analyzes the relationship among constitutional guarantees under Article III of the 1987 Constitution, the Data Privacy Act and related issuances of the National Privacy Commission (NPC), the supervisory rules of the Bangko Sentral ng Pilipinas (BSP), and sectoral legislation such as the Internet Transactions Act, the Anti-Financial Account Scamming Act (AFASA) and the Cybercrime Prevention Act.

2. Philippine Legal and Regulatory Framework

2.1. Constitutional Foundations

The protection of financial privacy in the Philippines is anchored on the Bill of Rights of the 1987 Constitution, which enshrines the inviolability of private communications and correspondence. Article III, Section 3(1) provides that “the privacy of communication and correspondence shall be inviolable except upon lawful order of the court, or when public safety or order requires otherwise as prescribed by law.”⁹ This constitutional guarantee is the baseline state or private intrusion into personal data flows, including those generated by financial transactions through e-wallet platforms.

Jurisprudence has clarified the scope of this right in the context of technological change. In *Ople v. Torres*, the Supreme Court struck down Administrative Order No. 308, which sought to establish a national

⁷ World Bank, Philippines First Financial Sector Reform Development Policy Financing Project 12-13 (2021), <https://documents1.worldbank.org/curated/en/982841624845656790/pdf/Philippines-First-Financial-Sector-Reform-Development-Policy-Financing-Project.pdf>

⁸ Constitution of the Republic of the Philippines, Article III, Section 3(1) (1987).

⁹ Id.



computerized identification reference system. The Court held that the order was unconstitutional because it posed a serious threat to the right to privacy and was issued without clear legislative authority or adequate safeguards.¹⁰ In this case, the Court emphasized that privacy is a fundamental right implicit in the due process and liberty clauses, and not merely a statutory interest. Similarly, *Disini v. Secretary of Justice*, the Supreme Court upheld most provisions of the Cybercrime Prevention Act of 2012 (RA 10175) as constitutional. However, it struck down certain provisions, including the take-down clause under Section 19, for being overbroad and violative of freedom of expression and the right to privacy. The Court emphasized that while the State may regulate cybercrimes, such regulation must not unduly curtail constitutional rights in the digital age.¹¹

2.2. The Data Privacy Act of 2012 (Republic Act No. 10173)

The Data Privacy Act of 2012 (DPA) serves as the Philippines' general data protection framework.¹² It operationalizes the constitutional guarantees of privacy and communication by prescribing obligations for personal information controllers (PICs) and personal information processors (PIPs), including e-wallet operators. Some of the salient features of the DPA are the principles of transparency, legitimate purpose, and proportionality, which function as normative anchors for lawful data processing.

Under Sections 3(b), 12, 18, and 20 of the Data Privacy Act of 2012¹³ and its Implementing Rules and Regulations,¹⁴ Personal Information Controllers (PICs) are mandated to uphold the principles of consent, transparency, and accountability in processing personal information. Consent must be freely given, specific, informed, and evidenced by written, electronic, or recorded means; transparency requires clear disclosure of data collection and processing practices.

The National Privacy Commission (NPC), created under the Data Privacy Act of 2012, is vested with quasi-judicial and regulatory powers to enforce compliance. For instance, NPC Circular No. 16-03 (Guidelines on Personal Data Breach Management) strengthened breach notification protocols by requiring

¹⁰ *Ople v. Torres*, G.R. No. 127685 (Supreme Court, July 23, 1998), https://lawphil.net/judjuris/juri1998/jul1998/gr_127685_1998.html

¹¹ *Disini v. Secretary of Justice*, G.R. No. 203335 (Supreme Court, February 18, 2014), https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.html

¹² Republic Act No. 10173 (Data Privacy Act of 2012).

¹³ *Id.*

¹⁴ Implementing Rules and Regulations of Republic Act No. 10173 (Data Privacy Act of 2012).



personal information controllers to notify the Commission within seventy-two (72) hours from knowledge of, or reasonable belief that, a personal data breach has occurred, and to inform affected data subjects when the breach is likely to result in serious harm.¹⁵ These instruments ensure that e-wallet operators adopt proactive risk management strategies and establish accountability mechanisms in the event of unauthorized transactions.

2.3. *Bangko Sentral ng Pilipinas (BSP) Regulations*

The BSP wields primary supervisory authority over financial institutions, including electronic money issuers (EMIs). Its regulatory issuances increasingly reflect an effort to embed consumer safeguards and data integrity into the financial-sector architecture.

BSP Circular No. 649 (2009) laid the foundational regulatory framework for EMIs.¹⁶ It imposed capitalization, liquidity, and anti-money laundering requirements, required transparent issuer identification, and constrained agent practices. In 2023, BSP Circular No. 1166 superseded Circular 649 and introduced enhanced governance, security, and operational standards for EMIs.¹⁷ These include requirements for robust internal controls, security policies safeguarding data integrity and confidentiality, fraud risk management systems, and stronger disclosure and transparency obligations. Together, these provisions help close gaps exploited by phishing, account takeover, and SIM-swap attacks, risks that particularly undermine the trustworthiness of e-wallet services. The BSP also strengthened consumer safeguards through Circular No. 1048 (2019), which established the Financial Consumer Protection Framework.¹⁸ It institutionalizes transparency, fair treatment, fraud prevention, and redress mechanisms for BSP-supervised institutions.

2.4. *Other Relevant Laws*

Beyond the DPA and BSP circulars, several statutes supplement the Philippine legal framework on financial privacy. First, the Internet Transactions Act of 2023 (RA 11967) established regulatory oversight over digital platforms,

¹⁵ NPC Circular No. 16-03: Guidelines on Personal Data Breach Management, §§ 18–21.

¹⁶ Bangko Sentral ng Pilipinas, Circular No. 649, Guidelines on Electronic Money and Operations (Mar. 9, 2009), <https://www.bsp.gov.ph/Regulations/Issuances/2009/c649.pdf>

¹⁷ Bangko Sentral ng Pilipinas, Circular No. 1166, Series of 2023: Amendments to the Regulations on Electronic Money (E-money) and the Operations of Electronic Money Issuers (Feb. 7, 2023), <https://www.bsp.gov.ph/Regulations/Issuances/2023/1166.pdf>

¹⁸ Bangko Sentral ng Pilipinas, Circular No. 1048, Regulations on Financial Consumer Protection (May 28, 2019), <https://www.bsp.gov.ph/Regulations/Issuances/2019/c1048.pdf>



Journal for Law Advocacy
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mandating consumer redress mechanisms, prohibiting deceptive practices, and strengthening the DTI's role in digital marketplace regulation.¹⁹ While primarily aimed at e-commerce, its provisions are relevant to e-wallets and fintech operations that function as online platforms, reflecting the sector's increasingly hybrid character.

Second, the Anti-Financial Account Scamming Act (RA 12010) criminalizes the misuse of financial accounts, including the use of money mules, synthetic identities, and account takeovers.²⁰ The law empowers financial institutions and payment service providers to implement stricter know-your-customer measures, freeze or temporarily hold disputed funds, and report suspicious activities. For consumers, it provides statutory remedies against unauthorized use of e-wallet accounts, signaling legislative recognition of fraud as a systemic privacy and security risk.

Third, the Cybercrime Prevention Act of 2012 (RA 10175) establishes the criminal law framework for addressing offenses such as hacking, identity theft, and cyber fraud.²¹ Although it is not sector-specific, the law directly intersects with digital financial services regulation by penalizing unauthorized access, interception, and data interference involving electronic communications, including those processed through e-wallet platforms. Its enforcement provisions, such as real-time collection of traffic data and computer data preservation orders, equip authorities with investigative tools to combat online crimes.

Together, these constitutional, statutory, and regulatory instruments comprise a multi-layered legal architecture for financial privacy in the Philippines. The Constitution establishes the baseline right to privacy, the Data Privacy Act translates it into enforceable obligations, BSP regulations operationalize safeguards in financial supervision, and sectoral statutes like the Internet Transactions Act, AFASA, and the Cybercrime Prevention Act provide complementary coverage.

¹⁹ Republic Act No. 11967 (Internet Transactions Act of 2023).

²⁰ Republic Act No. 12010 (Anti-Financial Account Scamming Act of 2024).

²¹ Republic Act No. 10175 (Cybercrime Prevention Act of 2012).



3. Regulatory Challenges and Gaps

Despite the Philippines' increasingly robust legal framework, ambiguities in statutory application, competing policy mandates, and fragmented oversight mechanisms continue to hinder coherent protection of financial privacy in the digital economy.

The first challenge arises from the application of the Data Privacy Act (DPA) to fintechs such as electronic money issuers (EMIs) and digital financial service providers. While the statute expressly applies to “personal information controllers” (PICs), the rapid evolution of fintech business models has complicated its scope and interpretation. E-wallet operators routinely process not only financial identifiers such as account numbers and government IDs, but also behavioral data, geolocation, and device metadata that can reveal intimate consumer habits and transactional behavior.²² The statute’s traditional categories of “personal information” and “sensitive personal information” were drafted in an era that predated algorithmic profiling, credit scoring, and large-scale data monetization.

In addition, sectoral regulations promulgated by the Bangko Sentral ng Pilipinas (BSP) and the Anti-Money Laundering Council (AMLC) impose mandatory data collection obligations for fraud monitoring, customer verification, and suspicious transaction reporting.²³ Under the AML/CFT framework, electronic money issuers (EMIs) and other covered financial institutions are required to apply customer due diligence, monitor transactional behavior, and retain records for prescribed periods.²⁴ Whether the categories of data such as transactional patterns, device identifiers, and behavioral metadata, qualify as “sensitive personal information” under the Data Privacy Act remains unsettled.

A second regulatory gap involves the uneasy balance between anti-money laundering and counter-terrorism financing (AML/CFT) obligations and constitutional privacy rights. The Anti-Money Laundering Act of 2001 (RA 9160), as amended, requires covered institutions, including electronic money issuers (EMIs), to undertake rigorous know-your-customer (KYC) procedures and to report covered and suspicious transactions to the Anti-Money

²² Fintech Laws and Regulations: Philippines, ICLG (2025), <https://iclg.com/practice-areas/fintech-laws-and-regulations/philippines>

²³ Bangko Sentral ng Pilipinas, Manual of Regulations for Non-Bank Financial Institutions (MORNBF1) 2021 (2021), <https://www.bsp.gov.ph/Regulations/MORB/2021MORNBF1.pdf>.

²⁴ Id.



Laundrying Council (AMLC).²⁵ These duties are further detailed in its Revised Implementing Rules and Regulations, which establish reporting timelines, confidentiality safeguards, and safe-harbor protections for covered entities acting in good faith.²⁶ Likewise, Bangko Sentral ng Pilipinas (BSP) Circular No. 706, as amended, obliges covered institutions to maintain customer identification records for at least five years and to monitor account activities on a continuous, risk-based basis.²⁷

A third gap in financial privacy protection arises from the fragmentation of regulatory authority over e-wallets and fintech operations. The Bangko Sentral ng Pilipinas (BSP) supervises electronic money issuers (EMIs) under its consumer protection mandates; the National Privacy Commission (NPC) enforces the Data Privacy Act and oversees data breach management; the Anti-Money Laundering Council (AMLC) implements AML/CFT rules; the Department of Trade and Industry (DTI), under the Internet Transactions Act of 2023, exercises jurisdiction over online platforms and merchants, and the Securities and Exchange Commission (SEC) regulates fintech firms engaged in crowdfunding. Policy research by the Philippine Institute for Development Studies (PIDS) observes that the coexistence of multiple regulators, including the BSP, NPC, AMLC, DTI, and SEC, has resulted in overlapping jurisdictions, inconsistent enforcement, and regulatory duplication that hinder coherent governance of digital financial platforms in the Philippines.²⁸

4. Analysis and Advocacy Recommendations

Financial privacy in the Philippines must be recognized not merely as a matter of regulatory compliance but as a fundamental constitutional right. Article III, Section 3(1) of the 1987 Constitution provides that “the privacy of communication and correspondence shall be inviolable except upon lawful order of the court, or when public safety or order requires otherwise as prescribed by law.”²⁹ This provision establishes a baseline of protection for all

²⁵ Republic Act No. 9160, Anti-Money Laundering Act of 2001, as amended by Republic Act No. 11521.

²⁶ Revised Implementing Rules and Regulations of Republic Act No. 9160 (Phil.), <https://www.amlc.gov.ph/2-uncategorised/55-revised-implementing-rules-and-regulations-of-republic-act-no-9160>.

²⁷ Bangko Sentral ng Pilipinas, Circular No. 706, Updated Anti-Money Laundering Rules and Regulations, § X807 (Jan. 5, 2011) (Phil.), https://lawphil.net/administ/bsp/cir_706_2011.html.

²⁸ Aiken Larisa O. Serzo, Philippine Regulations for Cross-Border Digital Platforms: Impact and Reform Considerations, Philippine Institute for Development Studies, Research Paper Series No. 2021-08 (Oct. 25, 2021), <https://pids.gov.ph/publication/research-paper-series/philippine-regulations-for-cross-border-digital-platforms-impact-and-reform-considerations>.

²⁹ Constitution of the Republic of the Philippines, art. III, § 3(1).



forms of communication, including transactional data processed through e-wallets and other digital financial platforms. In an era where financial interactions are increasingly mediated by technology, the constitutional guarantee functions as both a shield against undue surveillance and a normative standard for evaluating statutory and regulatory measures.

Jurisprudence underscores the enduring relevance of this constitutional right in the context of technological change. The jurisprudence on *Ople v. Torres*,³⁰ and *Disini v. Secretary of Justice*,³¹ establish guiding principles applicable to financial privacy in the digital era: any regulatory or commercial processing of personal and financial data must respect constitutional boundaries, ensure proportionality, and incorporate sufficient safeguards against misuse.

In the context of e-wallets, these constitutional and jurisprudential standards imply that obligations imposed on electronic money issuers (EMIs) and other digital financial service providers, such as data retention, transactional monitoring, or reporting suspicious activity, must be carefully calibrated. Compliance requirements should not undermine the inviolability of communication and correspondence, particularly when dealing with sensitive transactional or behavioral data that may reveal intimate details about users' habits and finances.

The rapid evolution of digital financial services has exposed interpretive gaps in the Data Privacy Act of 2012 (DPA) collected by e-wallet providers.³² These uncertainties are compounded by overlapping and sometimes conflicting obligations under the Anti-Money Laundering Act of 2001 (AMLA),³³ Bangko Sentral ng Pilipinas (BSP) regulations,³⁴ and sectoral statutes such as the Anti-Financial Account Scamming Act (AFASA)³⁵ the Internet Transactions Act.³⁶ and the Cybercrime Prevention Act.³⁷ Legislative clarifications or targeted amendments are therefore recommended to explicitly cover

³⁰ *Ople v. Torres*, G.R. No. 127685.

³¹ *Disini v. Secretary of Justice*, G.R. No. 203335.

³² Republic Act No. 10173 (Data Privacy Act of 2012).

³³ Republic Act No. 9160 (Anti-Money Laundering Act of 2001).

³⁴ Bangko Sentral ng Pilipinas Circular No. 1166 (Enhanced Rules on Electronic Money Issuers).

³⁵ Republic Act No. 12010 (Anti-Financial Account Scamming Act of 2024).

³⁶ Republic Act No. 11967 (Internet Transactions Act of 2023), *supra* note 8, at 2.

³⁷ Republic Act No. 10175, An Act Defining Cybercrime, Providing for the Prevention, Investigation, Suppression and the Imposition of Penalties Therefor and for Other Purposes (Sept. 12, 2012) (Philippines), https://lawphil.net/statutes/repacts/ra2012/ra_10175_2012.html.



emerging categories of financial data, harmonize sectoral obligations, and strengthen principles of informed consent, proportionality, and accountability.

To address these challenges, mechanisms for inter-agency coordination are recommended to ensure coherent oversight while minimizing administrative burdens. Additionally, clear frameworks for resolving jurisdictional overlaps, including the prioritization of sector-specific expertise and harmonized enforcement protocols, can maintain regulatory clarity without stifling innovation or impeding the growth of the digital financial ecosystem. Regulatory measures must strike a balance between oversight and innovation, ensuring that fintech firms can adopt emerging technologies and business models without being unduly constrained by compliance burdens.

5. Conclusion

The protection of financial privacy in a rapidly digitalizing economy is a multi-dimensional challenge that extends beyond regulatory compliance. It implicates fundamental constitutional rights, requiring that all legal and administrative measures respect the inviolability of private communications and transactional data. Ensuring effective protection necessitates harmonization across overlapping statutory and regulatory regimes, clear guidelines for enforcement, and coordinated mechanisms for inter-agency oversight.

Future policy and governance efforts should prioritize flexibility and adaptability, recognizing that emerging technologies continually reshape the scope and nature of data collection and processing. Legislative refinements and regulatory clarifications are needed to address interpretive gaps, strengthen consent frameworks, and enhance remedial pathways for affected users. Simultaneously, consumer protection strategies—such as education, transparency, and accessible redress mechanisms—must be integrated with broader regulatory objectives to build trust and accountability in the digital financial ecosystem.

Ultimately, safeguarding financial privacy requires a forward-looking approach that balances innovation with constitutional principles, operational coherence with institutional coordination, and risk mitigation with the promotion of inclusive digital finance. Continuous monitoring, research, and policy iteration are essential to ensure that legal frameworks remain relevant, proportionate, and effective in protecting both individual rights and systemic integrity.



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Journal for Law Advocacy
Volume 5, Year 2025-2026

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Volume 5, Year 2025-2026

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